



File No.: EXP202311068

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 25, 2023, a complaint was filed with registration number REGAGE23e00050544284 with the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are based on the following facts:

The complainant states that the complained party is responsible for a camera installed in the window of a property, with said camera directed towards the public road, without prior administrative authorization for this and without being properly signposted with the required informative signs of the monitored area.

Along with the notification, an image showing the location of the camera is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was sent by certified postal mail and was not collected by the responsible party on 08/08/2023, due to absence during delivery; the forwarding was reiterated on 30/08/2023, but was refused due to incorrect address, and finally, it was returned again on 11/09/2023, due to absence during delivery.

Consequently, no response has been received to any of the forwarding letters.

THIRD: On October 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

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In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

Article 22.5 of the LOPDGDD, under Article 2.2.c) of the GDPR, excludes "from its scope of application

the processing by a natural person of images that only capture the interior of their own home. This exclusion does not cover processing carried out by a private security entity that has been contracted for the surveillance of a home and has access to the images. (...)"

III

Legality of processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject."

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interested parties who require the protection of personal data, particularly when the interested party is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

Article 22.1 of the LOPDGDD, regarding processing for the purposes of video surveillance, states that "Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities."

Private individuals may then use video surveillance for their security, provided they comply with the principle of data minimization in their collection, as stipulated in Article 5.1.c) of the GDPR, specified in Article 22.2 of the LOPDGDD: "Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section (...) without in any case capturing images from within a private home."

Article 22.3 of the LOPDGDD also limits the retention period of these data, stating that "Data shall be deleted within a maximum period of one month from its capture, unless it must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time the existence of the recording is known (...)."

IV

Information to be provided when personal data is obtained from the interested party

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as video surveillance, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR. In this regard, Article 13 of the GDPR states the following:

"1. When personal data relating to an interested party is obtained from that party, the data controller, at the time of obtaining such data, shall provide all the information indicated below:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the

processing;

d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of a decision of

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adaptation of the Commission, or, in the case of the transfers indicated in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to adequate or appropriate safeguards and the means to obtain a copy of these or the location where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;

c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information pursuant to paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

Article 22.4 of the LOPDGDGDD specifies for video surveillance a layered information system, to facilitate compliance with the information duty in a concise and understandable manner for the affected party, in accordance with Article 12 of the GDPR; it establishes that "the information duty (...) shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device. In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties."

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The installation of a video surveillance camera on the facade of a residence capable of capturing the public road could constitute an infringement, attributable to the party being claimed against, when it violates Article 5.1.c) of the GDPR, which states that personal data shall be: "adequate, relevant, and

limited to what is necessary in relation to the purposes for which they are processed.”

Furthermore, the absence of the mandatory informative signs indicating a monitored area would violate, in this case, the obligation of the party being claimed against to inform the interested party of the collection of personal data, as provided for in Article 13 of the GDPR.

In this case, the evidence provided is a single photograph that shows only a window with a camera; therefore, it cannot be verified whether video surveillance is being conducted, whether the camera is authentic, or whether it records images; it also cannot be verified whether the camera is directed towards the public road or common areas, nor can its possible field of vision be presumed.

With the evidence provided, it is not possible to ascertain beyond a reasonable doubt that an infringement of the GDPR has occurred, given that the exact location of the camera cannot be known with certainty, nor can the identity of the alleged responsible party for the video surveillance treatment be adequately specified.

VI

Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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